

--SUMMARY--

Decision No. 2081/16

03-Nov-2016

R.Nairn

- In the course of employment (parking lots)
- Right to sue

The plaintiff in a civil case slipped and fell in the parking lot of the premises where his employer was located. The defendants applied to determine whether the plaintiff's right of action was taken away. The issue was whether the plaintiff was in the course of employment at the time of the accident.

The Vice-Chair interpreted Board policy as extending an employer's premises to include a parking lot or roadway over which the employer exercises some type of control. In this case, the employer did not exercise sufficient control over the area where the worker fell for it to be deemed part of the employer's premises. The employer did not own the parking lot, did not lease the parking lot and was not responsible for maintenance of the parking lot.

The plaintiff was not in the course of employment when he slipped and fell in the parking lot. His right of action was not taken away.

15 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w0117s]
- BOARD DIRECTIVES AND GUIDELINES: Operational Policy Manual, Documents No. 15-20-20, 15-03-04
- TRIBUNAL DECISIONS CONSIDERED: 1289/97 consd, 431/09 consd, 1468/11 consd, 701/12 consd

Style of Cause: Parapattu v. The Snow Terminator
Neutral Citation: 2016 ONWSIAT 2996



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 2081/16

BEFORE: R. Nairn: Vice-Chair

HEARING: August 9, 2016 at Ottawa
Oral

DATE OF DECISION: November 3, 2016

NEUTRAL CITATION: 2016 ONWSIAT 2996

APPLICATION FOR ORDER UNDER SECTION 31 OF THE *WORKPLACE SAFETY AND INSURANCE ACT, 1997*

APPEARANCES:

For the applicant – The Snow Terminator: T. Warmelink, Lawyer

For the co-applicant – H&R and Palladium: B. Carson, Lawyer

For the respondent – K. Parapattu: A. Girones, Lawyer

Interpreter: Not applicable

**Workplace Safety and Insurance
Appeals Tribunal**

505 University Avenue 7th Floor
Toronto ON M5G 2P2

**Tribunal d'appel de la sécurité professionnelle
et de l'assurance contre les accidents du travail**

505, avenue University, 7^e étage
Toronto ON M5G 2P2

REASONS

(i) Introduction

- [1] These are the reasons for the decision of the Workplace Safety and Insurance Appeals Tribunal with respect to an application under section 31 of the *Workplace Safety and Insurance Act, 1997* (the “WSIA”). The application is brought by The Snow Terminator, a defendant in a civil action filed in the Ontario Superior Court of Justice in Ottawa Ontario as Court File No. 14-61146. A co-application is brought by the other two defendants in that same action – Palladium Portfolio Inc. (“Palladium”) and H&R Reit Properties Ltd. (“H&R”). The plaintiff in the above-mentioned Ontario Superior Court of Justice action and the respondent in this application is Mr. Parapattu.

(ii) Background

- [2] The following background information is, generally speaking, not contested and I have relied on it in reaching my decision:

- The parties have agreed that at the time of the events under consideration here, Mr. Parapattu was a worker of a Schedule 1 employer – S. Ltd. Mr. Parapattu worked as a machine operator.
- The offices of S. Ltd. were located at 500 Palladium Drive in the City of Ottawa in the Province of Ontario.
- The parties have agreed that the building in which S. Ltd. was located was owned by the co-applicant Palladium. The property was managed by the co-applicant H&R who contracted with the applicant The Snow Terminator to provide snow clearing services.
- The parties have agreed that at the time of the events under consideration here, S. Ltd., H&R and The Snow Terminator were Schedule 1 employers for WSIB purposes. Palladium was not a Schedule 1 employer.
- On the morning of February 28, 2013, Mr. Parapattu drove his car to work and parked in one of the parking lots outside of his place of employment – S. Ltd. He had arrived at the parking space just moments before the normal start of his workday at 8:00 a.m.
- Upon exiting his vehicle, Mr. Parapattu was walking towards the entrance to his workplace when he slipped and fell in the parking lot.
- At the commencement of the hearing, Ms. Girones, on behalf of the respondent, agreed that the worker was in the parking lot that day for the purposes of reporting to work.
- By means of a lease signed on June 11, 2012, Palladium granted S. Ltd. a “non-exclusive license to use the Common Areas”. Schedule D of the lease notes that “common areas” includes “the Parking Facilities and other service areas and facilities if any” and:

All lands, areas, facilities, systems, improvements, structures, furniture fixtures and equipment serving or benefiting the Project whether or not located within

the project and including for clarity, public lobbies, halls, laboratories, passageways, elevators, exterior and interior stairways, building systems, driveways, truck ways, entrances, exits, pedestrian sidewalks, including City lands, ramps and landscape areas, to the extent that the same are designated or intended by Landlord to be part of the Common Areas from time-to-time (...)

- The incident was reported by another S. Ltd. employee to security at H&R and an Incident Report was completed.
- Mr. Parapattu subsequently reported the fall to the WSIB (the “Board”). On about May 22, 2013, he was provided with an election form by the Board indicating he could either commence a lawsuit or choose to claim workers’ compensation benefits. Mr. Parapattu elected to commence a lawsuit.
- On about June 16, 2014, Mr. Parapattu commenced an action in the Ontario Superior Court of Justice as Court File No. 14-61146 claiming damages for the injuries he sustained in his fall, from Palladium, H&R and The Snow Terminator. The defendants to this action have now brought these section 31 applications to the Tribunal.

(iii) Issues

- [3] Given that the parties have agreed that at the time of the incident under consideration here Mr. Parapattu was a worker of a Schedule 1 employer – S. Ltd. and that H&R and The Snow Terminator were Schedule 1 employers, the remaining issue to be decided is whether Mr. Parapattu was in the course of his employment at the time of the accident.

(iv) Law and policy

- [4] Section 31 of the WSIA provides that a party to an action or an insurer from whom statutory accident benefits (SABs) are claimed under section 268 of the *Insurance Act* may apply to the Tribunal to determine whether: a right of action is taken away by the Act; whether a plaintiff is entitled to claim benefits under the insurance plan; or whether the amount a party to an action is liable to pay is limited by the Act.

- [5] Sections 26 through 29 of the WSIA provide the following:

26(1) No action lies to obtain benefits under the insurance plan, but all claims for benefits shall be heard and determined by the Board.

(2) Entitlement to benefits under the insurance plan is in lieu of all rights of action (statutory or otherwise) that a worker, a worker’s survivor or a worker’s spouse, child or dependant has or may have against the worker’s employer or an executive officer of the employer for or by reason of an accident happening to the worker or an occupational disease contracted by the worker while in the employment of the employer.

27(1) Sections 28 to 31 apply with respect to a worker who sustains an injury or a disease that entitles him or her to benefits under the insurance plan and to the survivors of a deceased worker who are entitled to benefits under the plan.

(2) If a worker’s right of action is taken away under section 28 or 29, the worker’s spouse, child, dependant or survivors are, also, not entitled to commence an action under section 61 of the Family Law Act.

28(1) A worker employed by a Schedule 1 employer, the worker’s survivors and a Schedule 1 employer are not entitled to commence an action against the following persons in respect of the worker’s injury or disease:

1. Any Schedule 1 employer.
2. A director, executive officer or worker employed by any Schedule 1 employer.

(2) A worker employed by a Schedule 2 employer and the worker's survivors are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. The worker's Schedule 2 employer.
2. A director, executive officer or worker employed by the worker's Schedule 2 employer.

(3) If the workers of one or more employers were involved in the circumstances in which the worker sustained the injury, subsection (1) applies only if the workers were acting in the course of their employment.

(4) Subsections (1) and (2) do not apply if any employer other than the worker's employer supplied a motor vehicle, machinery or equipment on a purchase or rental basis without also supplying workers to operate the motor vehicle, machinery or equipment.

29(1) This section applies in the following circumstances:

1. In an action by or on behalf of a worker employed by a Schedule 1 employer or a survivor of such a worker, any Schedule 1 employer or a director, executive officer or another worker employed by a Schedule 1 employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.
2. In an action by or on behalf of a worker employed by a Schedule 2 employer or a survivor of such a worker, the worker's Schedule 2 employer or a director, executive officer or another worker employed by the employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.

(2) The employer, director, executive officer or other worker is not liable to pay damages to the worker or his or her survivors or to contribute to or indemnify another person who is liable to pay such damages.

(3) The court shall determine what portion of the loss or damage was caused by the fault or negligence of the employer, director, executive officer or other worker and shall do so whether or not he, she or it is a party to the action.

(4) No damages, contribution or indemnity for the amount determined under subsection (3) to be caused by a person described in that subsection is recoverable in an action.

[6] In *Decision No. 1460/02*, the Panel noted that the Tribunal is not required to apply Board policy in right to sue applications, as section 126 of the Act refers to appeals, not applications. The Panel, however, also noted that it is important to maintain consistency with findings that might have been made had the case come to the Tribunal by way of appeal from a decision regarding entitlement. Therefore, Board policy continues to be relevant in right to sue applications (see *Decision No. 755/02*).

(v) The testimony of Mr. Parapattu

[7] Under questioning from Ms. Warmelink, Mr. Parapattu testified that at the time of the events under consideration here, he was employed as a machine operator with S. Ltd. S. Ltd. operated a manufacturing business. Mr. Parapattu testified that the S. Ltd's facilities were located in a complex at 500 Palladium Drive in Ottawa. Mr. Parapattu understood that there is one other tenant in this building and the two companies occupied parts of the first and second

floors. These companies also shared a cafeteria as well as the parking lot. There was a security guard at the entrance to the building and receptionist.

[8] Mr. Parapattu testified that on February 28, 2013, he drove his vehicle to work as was his normal practice. He arrived at work just shortly before his scheduled start time of 8:00 a.m. His normal shift ran from 8:00 a.m. to 4:00 p.m.

[9] Mr. Parapattu testified that he parked his car in the parking lot and after doing so, planned to walk the approximately 100 meters to the entrance of the S. Ltd. building. Unfortunately, shortly after exiting his vehicle he slipped and fell on the roadway.

[10] Mr. Parapattu confirmed that had he not fallen, he planned to proceed directly to work. His sole purpose for being in the parking lot that day was to go to work. When he fell, he was taking the most direct route from his car to the entrance of the building. Mr. Parapattu testified that there was only one entrance for employees into the building. S. Ltd. had advised him and other employees to use this entrance only. There was an entrance on the other side of the building that clients or visitors might use. There was also a customer/visitor parking area on the other side of the building.

[11] Under questioning from Ms. Carson, Mr. Parapattu confirmed that with the exception of the visitor parking area on the other side of the building, there were no signs telling him where or where not to park.

[12] Under questioning from Ms. Girones, Mr. Parapattu confirmed that there was no gate controlling access to the parking lot. He testified that any member of the public could park in this lot although he advised Ms. Warmelink that he could think of no reason why anyone other than a client or employee would park there. He testified he did not require a pass to get into the parking lot. It was his understanding that S. Ltd. was not responsible for snow removal or repairs to the parking lot, or for taking care of the grassy areas. It was his understanding that H&R was the properly manager and they were responsible for all outside work.

(vi) Analysis

[13] As indicated earlier, the central issue to be determined in this application is whether Mr. Parapattu's accident of February 28, 2013, occurred in the course of his employment.

[14] *Operational Policy Manual* ("OPM") Document No. 15-02-02 entitled "Accident in the Course of Employment" provides:

Policy

A personal injury by accident occurs in the course of employment if the surrounding circumstances relating to place, time, and activity indicate that the accident was work-related.

Guidelines

In determining whether a personal injury by accident occurred in the course of employment, the decision-maker applies the criteria of place, time, and activity in the following way:

Place

If a worker has a fixed workplace, a personal injury by accident occurring on the premises of the workplace generally will have occurred in the course of employment. A personal injury by accident occurring off those premises generally will not have occurred in the course of employment.

If a worker with a fixed workplace was injured while absent from the workplace on behalf of the employer or if a worker is normally expected to work away from a fixed workplace, a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities.

Time

If a worker has fixed working hours, a personal injury by accident generally will have occurred in the course of employment if it occurred during those hours or during a reasonable period before starting or after finishing work.

If a worker does not have fixed working hours or if the accident occurred outside the worker's fixed working hours, the criteria of place and activity are applied to determine whether the personal injury by accident occurred in the course of employment.

Activity

If a personal injury by accident occurred while the worker was engaged in the performance of a work-related duty or in an activity reasonably incidental to (related to) the employment, the personal injury by accident generally will have occurred in the course of employment.

If a worker was engaged in an activity to satisfy a personal need, the worker may have been engaged in an activity that was incidental to the employment. Similarly, engaging in a brief interlude of personal activity does not always mean that the worker was not in the course of employment. In determining whether a personal activity occurred in the course of employment, the decision-maker should consider factors such as

- the duration of the activity
- the nature of the activity, and
- the extent to which it deviated from the worker's regular employment activities.

In determining whether an activity was incidental to the employment, the decision-maker should take into consideration

- the nature of the work
- the nature of the work environment, and
- the customs and practices of the particular workplace.

Application of criteria

The importance of the three criteria varies depending on the circumstances of each case. In most cases, the decision-maker focuses primarily on the activity of the worker at the time the personal injury by accident occurred to determine whether it occurred in the course of employment.

If a worker with fixed working hours and a fixed workplace suffered a personal injury by accident at the workplace during working hours, the personal injury by accident generally will have occurred in the course of employment unless, at the time of the accident, the worker was engaged in a personal activity that was not incidental to the worker's employment.

The decision-maker examines the activity of the worker at the time of the accident to determine whether the worker's activity was of such a personal nature that it should not be considered work-related.

In all other circumstances, the time and place of the accident are less important. In these cases, the decision-maker focuses on the activity of the worker and examines all the surrounding circumstances to decide if the worker was in the course of employment at the time that the personal injury by accident occurred.

[15] The respondent's representative did not take any significant issue with the suggestion that a review of the criteria of time and activity would suggest the accident occurred in the course of Mr. Parapattu's employment. In his testimony, Mr. Parapattu acknowledged that he had fixed working hours of 8:00 a.m. to 4:00 p.m. and his slip and fall occurred only a few moments before his scheduled start time. Mr. Parapattu also testified, and his representative acknowledged, that the only reason he was in the parking lot that day was to report for work. At the time he fell, he was in the midst of taking the most direct route from his car to the only door he was permitted to use to enter S. Ltd. There were no suggestions that at the time of his fall the worker was involved in any type of personal activity.

[16] The more difficult issue in this application deals with the criteria of "place". The policy provides that "if a worker has a fixed workplace, a personal injury by accident occurring on the premises of the workplace generally will have occurred in the course of employment". It has not been disputed that Mr. Parapattu had a fixed workplace and therefore one must determine whether he was injured on the "premises" of S. Ltd and more particularly, whether the roadway where he fell could be considered part of his employer's premises.

[17] *Operational Policy Manual* Document No. 15-03-04 entitled "Employer's Premises, Parking Lots, Roads, Plazas, Malls, Boundaries" provides some assistance in determining how far an employer's "premises" extends beyond the actual plant or location of work. The policy notes that "workers are in the course of employment upon entering the employer's premises at the proper time, using an accepted entrance". The policy continues and provides further explanation with respect to the description of an employer's premises and indicates:

Guidelines

Employer's premises

Definition

The building, plant or location of work, including entrances, exits, stairs, elevators, lobbies, parking lots, passageways and private roads.

Parking lots

The employer must own or lease the parking lot.

If driving, the condition of the employer's lot must cause the accident.

If walking, the condition of the lot need not be a contributing factor.

Workers are not entitled to compensation if injured by their own vehicle.

Employer-owned private roads

If part of the worker's journey to or from work takes place on a road that is completely controlled by means such as posted notices, warning signs, or opening or closing of gates, maintenance work or snow clearing, the worker is in the course of employment while using the roadway.

The worker is not in the course of employment while using a road open to the general public. The condition of the employer's private roads must cause the accident.

Plazas and malls

Workers are not in the course of employment in public parking areas not under the employer's control.

Workers injured in parking spaces regulated and allocated by the employer may be entitled to compensation.

Workers are members of the general public once they leave the allocated areas and remain so until they arrive on the employer's premises.

Workers have no entitlement if their injuries occur on indoor streets and walkways open to the general public and not under the employer's control.

Entitlement is allowed if accidents occur on the actual premises of the employer within the mall or plaza.

- [18] In this case, Mr. Parapattu slipped and fell on a roadway in the parking lot outside the offices of S. Ltd. According to OPM Document No. 15-03-04, in order for a parking lot to be considered part of an employer's premises, "the employer must own or lease the parking lot". The evidence before me is clear that S. Ltd. did not own or lease the parking lot where Mr. Parapattu fell. In the Agreement signed on June 11, 2012, Palladium granted S. Ltd. only a "non-exclusive license" to use the "common areas" which included the parking facilities and driveways.
- [19] OPM Document No. 15-03-04 also suggests that a fall on a roadway might be considered to be in the course of a worker's employment if the roadway is "completely controlled [by the employer] by means such as posted notices, warning signs, or opening or closing of gates, maintenance work or snow clearing". The uncontested testimony from Mr. Parapattu was clear that entrance to this parking lot was not restricted by means of a gate or the requirement of a parking pass. Other than being unable to park in an area on the other side of the building reserved for visitors, there were no restrictions on where Mr. Parapattu could park. He did not have a designated parking spot. Mr. Parapattu also testified that it was his understanding that his employer was not responsible for maintenance to the parking lot or for snow clearing. It was not disputed that the parking lot in question was owned by Palladium and managed by H&R who contracted with The Snow Terminator for snow removal.
- [20] Having reviewed the provisions of OPM Document No. 15-03-04, I find that the location where Mr. Parapattu's injury occurred was not part of the employer's "premises". As such, the criteria of "place" set out in OPM Document No. 15-02-02 would not suggest that the accident was work-related.
- [21] It was the position of the applicants that one could find that an accident occurred in the course of employment even in situations where the criteria of "place" was not satisfied. It was submitted that the primary consideration was whether or not the activity being performed by the worker at the time of the accident was reasonably incidental to the employment. OPM Document No. 15-02-02 would appear, at first blush, to support such a submission when it indicates:

Application of criteria

The importance of the three criteria varies depending on the circumstances of each case. In most cases, the decision-maker focuses primarily on the activity of the worker at the time the personal injury by accident occurred to determine whether it occurred in the course of employment.

If a worker with fixed working hours and a fixed workplace suffered a personal injury by accident at the workplace during working hours, the personal injury by accident generally will have occurred in the course of employment unless, at the time of the accident, the worker was engaged in a personal activity that was not incidental to the worker's employment.

The decision-maker examines the activity of the worker at the time of the accident to determine whether the worker's activity was of such a personal nature that it should not be considered work-related.

In all other circumstances, the time and place of the accident are less important. In these cases, the decision-maker focuses on the activity of the worker and examines all the surrounding circumstances to decide if the worker was in the course of employment at the time that the personal injury by accident occurred.

[22] While I acknowledge the submission of the applicants that the importance of the three criteria varies depending on the circumstances of each case and that “in most cases” the primary focus will be on the activity of the worker at the time of the injury, I interpret that policy to suggest “most cases” will involve a worker “with fixed working hours and a fixed workplace” who is injured during working hours. I interpret the policy to suggest that when, as is the case in this application, an injury occurs outside of the fixed workplace (i.e. a parking lot, a private road, a plaza or a mall) the criteria of “place” becomes significant.

[23] Once again, as I interpret the Board’s policy, extending an employer’s “premises” to include a parking lot or roadway requires that the employer exercise some type of control over it.

[24] In support of their position, the applicants referred to Tribunal *Decision No. 701/12*. The decision provides the following background information:

[3] On March 5, 2008, Chamoun arrived at the airport in his car at approximately 4:00 am.

His shift started at 4:30 am. Chamoun parked his car in a parking lot that was available to employees of various employers who operated out of the airport. The parking lot was not open to the public. Chamoun had a parking pass issued in his name which allowed him to park in the parking lot and which he used to gain entry to the lot. At one time, the parking passes were paid for by Aeroguard; however, the employer would deduct a certain amount from Chamoun’s paycheque to cover the cost of the parking pass. However, at some time prior to March 5, 2008, this practice changed and the employer no longer made deductions from Chamoun’s paycheque to cover the cost of the parking pass.

[4] On March 5, 2008, Chamoun parked his car in the employee parking lot in an area that was closest to the terminal building where he worked. He met up with his supervisor and a co-worker, and the three of them began walking from the parking lot to the terminal where they worked. In order to get from the parking lot to the terminal they had to pass along a walkway. Chamoun was wearing work boots that had been provided by his employer. While walking along the pathway, Chamoun slipped and fell.

[25] In *Decision No. 701/12*, the Vice-Chair found that the worker was injured in the course of his employment and in the course of doing so, the Vice-Chair also noted:

[15] In *Decision No. 2675/08*, I discussed the Tribunal’s jurisprudence pertaining to accidents which happen in parking lots as follows:

The question of whether a worker injured in an employer’s parking lot is in the course of employment has been addressed on numerous occasions by this Tribunal. A general consensus is evident in the jurisprudence. If the worker is in the parking lot for reasons which are reasonably incidental to his or her employment, then the worker will be regarded as being in the course of employment. Being in a parking lot for the purpose of coming to work or leaving work is regarded as reasonably incidental to employment. This test is referred to as the “premises test” and is described in *Decision No. 643/02* as follows:

The majority of Tribunal decisions on accidents occurring in parking lots have favoured what is referred to as the premises test. The premises test, which emphasises the geographic location of the accident, has been treated as establishing that a personal injury by accident sustained on the employer's premises occurs in the course of employment—unless the worker's activity is sufficiently remote from normal employment functions that the activity and resulting injury cannot be characterised as reasonably incidental to employment.

Decision No. 643/02 involved a worker who was injured when he fell off his bicycle in his employer's parking lot. Applying the "premises test" set out above, the Panel held that the worker was in the course of employment at the time of the accident:

In this case, the worker's use of a bicycle to travel to the workplace for a pre-scheduled shift was an activity reasonably incidental to his employment. Entitlement under the WSIA is available to workers whose injuries arise out of or in the course of employment. The worker suffered an accident while on the employer's premises for an activity reasonably incidental to his employment. Therefore, the worker has entitlement under the WSIA.

A similar approach was taken in *Decision No. 185/06*. In that case, the Tribunal considered an appeal from a decision of the Board which denied entitlement to a worker who was injured while driving his motorcycle in his employer's parking lot. The Board ruled that the worker was using his motorcycle for personal reasons and therefore the parking lot exclusions set out in the Board's policies applied. Since the condition of the parking lot did not cause the accident, the Board ruled that the worker was not in the course of employment and therefore was not entitled to benefits for the accident.

Decision No. 185/06 overturned the Board's decision. The Panel ruled that the worker's use of his motorcycle was not for personal reasons, and therefore the exclusions set out in the Board policy did not apply. Since the worker was not using his motorcycle for personal reasons, the condition of the employer's parking lot was not a relevant consideration. The Panel referred to *Decision No. 643/02* and stated:

There are a number of other cases to the same effect, cited in these decisions and available to the parties. In the end, they all support the view that, when an accident occurs on the employer's premises, including its company parking lot, when the worker is driving or otherwise coming to or leaving work, such an accident is considered to arise out of the course of employment under Board Policy. To put this another way, these analyses and decisions have all agreed that such an activity or purpose, i.e. a worker who is arriving at or leaving work on the employer premises, is not to be considered as use "for personal reasons" so as to invoke the exclusions listed in the first section of OPM Document No. 15-03-03 quoted above.

In these cases, an employer is taken to have provided its company parking for the obvious and value-added purpose of facilitating the use of vehicles for its employees to drive to and from work. In many situations, the workforce is widely spread some distance from the company offices or plant, etc., and such a parking arrangement is thus more than a mere convenience. The employer needs to provide a parking lot to attract and retain a skilled labour force, and the workers' collective presence on and use of the company parking lot is therefore properly considered to be a use arising out of their employment.

[16] Applying the principles identified in the policy and jurisprudence set out above to the facts of the present case, I find that Chamoun was in the course of employment when he slipped and fell on March 5, 2008. My reasons for this conclusion are as follows.

[17] It is clear from the Board's policy that a parking lot is considered to be part of an employer's premises if the employer owns or leases the parking lot. In this case, I find that the employer, Aeroguard, did lease the parking lot in which Chamoun parked his car. It is not disputed that the parking lot in which Chamoun parked his car was not a public parking lot, but one available only to employees of various employers who operated business at the Ottawa airport. In an Examination for Discovery conducted on December 15, 2010, Chamoun described the parking lot in which he parked as "the employee parking lot, E-1."

[18] Further, the lease that Aeroguard signed with the applicant contains a clause which allowed Aeroguard to rent or lease parking spaces under certain circumstances. The applicant filed a copy of the lease agreement. Although, the lease agreement appears to be a newer version of the lease and actually post-dates the accident at issue on this application, counsel for Chamoun conceded that the newer version is likely the same as the one that was in place at the time of the accident. Clause 6.12 of the agreement states:

The Tenant may purchase from the Landlord monthly parking passes for the Tenant's employees provided that the Landlord then has such passes available for purchase. The Tenant shall pay, as Additional Rent, to the Landlord for each such monthly parking pass the rate from time to time in effect at the Airport. Each such monthly parking pass shall entitle the bearer of such pass to park one automobile or other personal motor vehicle at a location specified by the Landlord at the Airport.

[19] Aeroguard exercised its option to purchase monthly parking passes for its workers. It paid the required sums to the applicant, and in return its workers were issued parking passes. Initially, Aeroguard deducted a certain amount from its worker's paychecks to offset the cost of the parking passes, but some time prior to March 5, 2008, that practice had changed and these deductions were no longer being made. I find that the evidence clearly establishes that the parking lot in which Chamoun parked his car on the day in question was a parking lot which his employer "leased" for the purposes of the Board's policy. Accordingly, under Policy #15-03-04, the parking lot is regarded as part of the employer's premises. The same policy states:

Workers are in the course of employment upon entering the employer's premises at the proper time, using an accepted entrance.

[20] As noted above, Tribunal decisions have consistently held that a worker who is in an employer's parking lot for reasons which are reasonably incidental to employment is in the course of employment. Further, being in a parking lot for the purpose of coming to work or leaving work is regarded as being reasonably incidental to employment.

[21] There is a line of Tribunal decisions which have extended the scope of the parking lot cases and found workers to be in the course of employment when injured in a parking lot that their employer neither owned nor leased. In *Decision No. 1468/11*, I discussed one of these cases as follows:

The second decision referred to by counsel for Gerrity is *Decision No. 431/09*. In this case, the worker worked for a school board. The school board made an arrangement with a church adjacent to the employer's premises that allowed the workers to park in the church's parking lot. The school board did not own or lease the parking lot. In return for allowing its workers to use the lot, the school board agreed to pay for snow to be cleared from the lot. The worker was injured when she slipped and fell in the parking lot.

As noted above, in this case, the employer did not own or lease the parking lot. The Vice-Chair ruled that in some circumstances, even if an employer does not own or lease a parking lot, a worker may still found to be in the course of employment when in that parking lot. Whether or not a worker who is injured in a parking lot that is neither owned nor leased by the employer, will depend on the degree of control that the employer exercises over the parking lot. In this case, the Vice-Chair ruled that the employer exercised sufficient control over the parking lot so that the worker was in the course of her employment when she fell.

Again, I am of the view that this case does not advance Gerrity's position. In *Decision No. 431/09*, the employer did not own or lease the parking lot. In the present application, Gerrity did lease the parking lot, which, therefore, formed part of its premises. The reason that *Decision No. 431/09* required the extensive discussion and analysis set out therein, is because the Vice-Chair examined those circumstances in which a worker injured in a parking lot while arriving or leaving work will be found to be in the course of employment even when the employer does not own or lease the parking lot. There is little doubt, in my view, that if the school board had leased the parking lot from the church, the Vice-Chair would have found, in many fewer pages, that the worker was in the course of employment because she was injured while on her employer's premises for the purpose of arriving at work.

[22] Similarly, in *Decision No. 2675/08*, I held that a worker who was directed by her employer to park in a certain section of a public parking lot at a plaza which her employer neither owned nor leased was nevertheless in the course of her employment when she fell in that parking lot because she was in that particular location because she was following a directive from her employer. The decision states:

As noted earlier, I am of the view that where an employer directs its employees to park in a particular area of a parking lot, the employer may be regarded as having allocated and regulated the use of that lot. It has allocated specific parking spots to be used, and it has regulated its employees' use of the lot by the potential imposition of sanctions for violation of its directive. In my view, a worker directed by her employer to go to a particular location is in the course of employment while following that directive.

[23] What these decisions illustrate is that Tribunal jurisprudence is clear that when a worker is in a parking lot that is owned or leased by the employer and is in the normal process of arriving at or leaving work, that worker is in the course of employment. Where the employer does not own or lease the parking lot, the worker may be in the course of employment depending on the circumstances of the case, and, in particular, the degree of control exercised by the employer over the parking lot. The facts in the present case fall clearly, in my view, within the line of cases dealing with employer-owned or leased parking lots. Accordingly, in keeping with the principles outlined in those cases and in the Board's policy, I find that Chamoun was in the course of employment when he arrived in the parking lot about half an hour before his shift began, on March 5, 2008.

[26] As the Vice-Chair noted in *Decision No. 701/12*, there have been a number of Tribunal decisions which have extended an employer's "premises" to include a parking lot. I also interpret *Decision No. 701/12* to suggest that in order for a parking lot or roadway to be considered part of an employer's premises, the employer must exercise some degree of control over it. Often, that control is demonstrated by evidence establishing that the employer owns or leases the parking lot. The employer in *Decision No. 701/12* leased the parking lot in which the worker parked his car, and was not a public parking lot but was available only to individuals who had the appropriate parking pass.

[27] I am also prepared to accept, as the Vice-Chair concluded in *Decision No. 701/12*, that there may be situations where an employer can be said to have control over a parking lot or roadway despite the fact it does not own or lease the parking lot or roadway. As the Vice-Chair noted in *Decision No. 701/12*, if “the employer does not own or lease the parking lot, the worker may be in the course of employment depending on the circumstances of the case, and, in particular, the degree of control exercised by the employer over the parking lot”.

[28] In *Decision No. 1468/11*, one of the other decisions referred to by the applicants, the Vice-Chair discussed one of the cases which involved an injury in a parking lot neither owned nor leased by the employer. The Vice-Chair noted:

[16] The second decision referred to by counsel for Gerrity is *Decision No. 431/09*. In this case, the worker worked for a school board. The school board made an arrangement with a church adjacent to the employer’s premises that allowed the workers to park in the church’s parking lot. The school board did not own or lease the parking lot. In return for allowing its workers to use the lot, the school board agreed to pay for snow to be cleared from the lot. The worker was injured when she slipped and fell in the parking lot.

[17] As noted above, in this case, the employer did not own or lease the parking lot. The Vice-Chair ruled that in some circumstances, even if an employer does not own or lease a parking lot, a worker may still found to be in the course of employment when in that parking lot. Whether or not a worker who is injured in a parking lot that is neither owned nor leased by the employer, will depend on the degree of control that the employer exercises over the parking lot. In this case, the Vice-Chair ruled that the employer exercised sufficient control over the parking lot so that the worker was in the course of her employment when she fell.

[18] Again, I am of the view that this case does not advance Gerrity’s position. In *Decision No. 431/09*, the employer did not own or lease the parking lot. In the present application, Gerrity did lease the parking lot, which, therefore, formed part of its premises. The reason that *Decision No. 431/09* required the extensive discussion and analysis set out therein, is because the Vice-Chair examined those circumstances in which a worker injured in a parking lot while arriving or leaving work will be found to be in the course of employment even when the employer does not own or lease the parking lot. There is little doubt, in my view, that if the school board had leased the parking lot from the church, the Vice-Chair would have found, in many fewer pages, that the worker was in the course of employment because she was injured while on her employer’s premises for the purpose of arriving at work.

[29] In *Decision No. 431/09*, the accident was determined to have occurred on the employer’s premises even though the employer did not lease or own the parking lot. The employer did however, agree to pay for snow to be cleared from the lot in return for allowing its workers to use the lot.

[30] Reviewing the facts of the application before me, I am not satisfied that the employer exercised sufficient control over the area where the worker fell for it to be deemed part of the employer’s premises. The employer did not own the parking lot, it did not lease the parking lot nor was it responsible for maintenance of the parking lot. The applicant’s representative submitted that the employer could be deemed to have control over the parking lot because if there was a problem, they could contact H&R to have them deal with it. While that is undoubtedly true, it does not, in my view, constitute sufficient control to have the parking lot deemed as part of the employer’s premises.

[31] In reaching my decision, I have also taken particular note of Tribunal *Decision No. 1289/97* referred to by the respondent in which the Panel concluded:

[43] As Mr. Collier correctly pointed out, the accident happened as Mr. Cui and Ms. Narain were on their way to work. The accident was in a parking lot that was neither owned nor leased by the employer. There were no parking spaces allocated for the employer's use and, as Mr. Cui testified, he parked wherever there was a space. The employer had no responsibility for maintaining the parking lot. Members of the public had unregulated access to the parking lot. In these circumstances, it cannot be said that the employer exercised any control over the parking lot.

[44] The Board's policy is that, as a general rule, workers are not in the course of their employment when they are travelling to and from work. There are exceptional circumstances in which an accident that happens while a worker is going to work may be found to have occurred in the course of the employment and have arisen out of the employment. The Panel finds that none of these circumstances are present in this case.

[32] After considering all of the evidence before me, including the submissions of the representatives and the testimony provided, I find that the accident that occurred on February 28, 2013, did not occur in the course of Mr. Parapattu's employment and therefore his rights of action are not taken away.

DISPOSITION

[33] The application and co-application are denied.

DATED: November 3, 2016

SIGNED: R. Nairn